

Amendment No. 1 to SB0846

Gardenhire
Signature of Sponsor

AMEND Senate Bill No. 846*

House Bill No. 1268

by deleting all language after the caption and substituting instead:

WHEREAS, the General Assembly recognizes that a critical need exists in the thirtieth judicial district for additional criminal justice resources because of an increase in violent crime; and

WHEREAS, from 2018 to 2024, the number of homicide offenses in the thirtieth judicial district increased by thirty-three percent, and the number of aggravated assault offenses increased by forty-one percent; and

WHEREAS, a task force was created by President Donald Trump to combat crime in the thirtieth judicial district, and the task force operations have resulted in thousands of arrests, straining the criminal court system in the thirtieth judicial district; and

WHEREAS, it is the intent of the General Assembly to increase the efficiency of the criminal justice system by adding additional criminal courts to the thirtieth judicial district for the purpose of handling violent crime cases; and

WHEREAS, the goals of the violent criminal courts created by this act include:

- (1) Increasing case management efficiency;
- (2) Expediting criminal case processing by increasing trial capacity;
- (3) Reducing caseloads for prosecutors and public defenders; and
- (4) Increasing public safety through more expeditious case processing; now,

therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Violent Criminal Court Act."

SECTION 2. Tennessee Code Annotated, Section 16-2-506(30), is amended by adding the following as a new subdivision:

(F)

(i) Effective September 1, 2026, there is created in the thirtieth judicial district two (2) additional criminal courts to be designated as violent criminal courts. The governor shall appoint a person to serve as judge of each of the violent criminal courts, and the person so appointed shall serve in that capacity until September 1, 2028, or until the person's successor is elected and qualified. At the August 2028 general election, the qualified voters of the thirtieth judicial district shall elect, in accordance with § 16-2-505, one (1) person to serve as judge of each violent criminal court created by this subdivision (30)(F)(i). The person so elected at the August 2028 general election shall hold office until September 1, 2030, or until the person's successor is elected and qualified. Thereafter, the judges of the violent criminal courts shall be elected for a full eight-year term;

(ii) The presiding judge is directed to address caseload backlogs in the criminal courts by transferring cases involving criminal offenses set forth in § 40-35-501(aa), (bb), and (cc) to the violent criminal courts for disposition; and

(iii) Effective September 1, 2026, the district attorney general of the thirtieth judicial district is entitled to four (4) assistant district attorney general positions and two (2) criminal investigator positions that are in addition to those positions provided pursuant to subdivision (30)(B);

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.